

SUNIL KUMAR

ADVOCATE | LITIGATION | BANKING & RECOVERY | CIVIL & COMMERCIAL LAW

+91-8077739867 | +91-9634352734 | Sunilupadhyay5@gmail.com

Karkardooma Courts, Delhi | Delhi-NCR

PROFESSIONAL SUMMARY

Advocate with 14+ years of litigation experience, practicing since 2012 before the Delhi High Court and District Courts across Delhi-NCR. Experienced in banking and recovery litigation, civil and criminal matters, commercial and contractual disputes, arbitration, writ and appellate practice, legal drafting, due diligence, and institutional legal advisory. Strong courtroom advocacy, cross-examination, statutory interpretation, drafting, negotiation, and litigation strategy capabilities, with experience representing corporate and institutional clients.

PROFESSIONAL EXPERIENCE

Independent Advocate & Managing Partner / Proprietor — UPADHYAY & ASSOCIATES | Delhi-NCR

2012 – Present

- Practicing as an Advocate since 2012, with extensive courtroom appearances before the Delhi High Court and District Courts across Delhi-NCR.
- Regular practice and representation across Delhi High Court; Tis Hazari; Karkardooma; Patiala House; Rohini; Dwarka; Saket; and other Subordinate Courts across Delhi-NCR.
- Provide legal services to corporate entities, institutions, and individuals, including litigation strategy, drafting, court representation, and status reporting.

Banking & Recovery Litigation

- Civil suits for money recovery, Summary Suits under Order 37 CPC, and execution proceedings before District Courts.
- Prosecution and defense in Section 138 Negotiable Instruments Act cheque-bounce matters.
- Proceedings under Section 25 of the Payment and Settlement Systems Act.
- Arbitration proceedings and post-award execution under the Arbitration and Conciliation Act.

High Court & Writ Practice

- Drafting and filing Civil Revision Petitions, FAO/RFA appeals, Writ Petitions, and Section 482 Cr.P.C. petitions before the High Court of Delhi.
- Representation in matters challenging or defending interim orders and statutory appeals.

Civil, Commercial & Contractual Matters

- Breach of contract, specific performance, damages, injunctions, property disputes, title verification, and conveyancing.
- Drafting and review of contracts, MOUs, deeds, and other legal instruments.
- DRC Act rent disputes, Labour & Industrial matters, and Motor Accident Claim (MACT) cases.

Drafting, Advisory & Due Diligence

- Independent drafting of pleadings, suits, complaints, legal notices, replies, deeds, and related court documents.
- Title searches, Non-Encumbrance Certificate (NEC) generation, and document vetting for institutional financing.
- Legal advisory, witness cross-examination, oral arguments, and statutory interpretation.

CORE LEGAL SKILLS

- | | |
|-------------------------------|-------------------------------------|
| • Civil & Criminal Litigation | • Banking & Recovery Litigation |
| • Commercial Litigation | • High Court Practice |
| • Writ & Appellate Practice | • Arbitration & Execution |
| • Legal Drafting & Pleadings | • Contract & Deed Drafting |
| • Property & Title Matters | • Due Diligence |
| • Cheque Bounce Litigation | • Cross-Examination |
| • Oral Arguments | • Statutory Interpretation |
| • Legal Advisory | • Negotiation & Litigation Strategy |

ACADEMIC & PROFESSIONAL QUALIFICATIONS

- Law Graduate (LL.B. Professional)
- Master of Arts (M.A.)
- Bachelor of Arts (B.A.)

BAR ENROLLMENT & PROFESSIONAL MEMBERSHIPS

- Enrolled with: Bar Council of Delhi / Bar Council of India
- Enrollment Number: D/725-A/2012
- Member, Shahdara Bar Association, Karkardooma Courts, Delhi
- Member, Lawyer Welfare Association

LEGAL & REGULATORY KNOWLEDGE

CPC, Cr.P.C., Evidence Act, BNS, BNSS, BSA, Negotiable Instruments Act, Payment and Settlement Systems Act, Arbitration and Conciliation Act, DRC Act.

KEY STRENGTHS

- Analytical legal reasoning and litigation strategy

- Expert cross-examination and persuasive advocacy
- Precise legal drafting, negotiation, and client communication
- Diligent, self-motivated, and focused on institutional legal interests

CONTACT & OFFICE

- Office: F-67, Lawyers Chamber Block, First Floor, Karkardooma Courts, Delhi - 110032
- Residential Address: 13-A/E, Village Patparganj, Near Alcon Public School, Delhi - 110091

PERSONAL DETAILS

- Date of Birth: 02-08-1985 | Gender: Male | Marital Status: Married
- Nationality: Indian | Languages: Hindi & English
- Father's Name: Sh. Suresh Chand